

Gulab Singh v. State of U.P. — writ not a substitute for prescribed disconnection application

High Court of Judicature at Allahabad · Division Bench · 18 January 2017 · WRIT - C No. - 2431 of 2017 · **Mandamus to disconnect refused; liberty to apply under the Code.**

HEADNOTE

A consumer cannot obtain a writ of mandamus directing disconnection of his own supply without first applying in the prescribed format and completing the formalities under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005, which provide a complete procedure for temporary and permanent disconnection. Mandamus was refused; the petitioner remains free to apply, and the respondents are to decide any such application immediately in accordance with law.

FACTUAL SUMMARY

Gulab Singh sought a writ of mandamus directing the State of U.P. and the distribution licensee to disconnect his electricity connection at village Kunda Agwanpur, Police Station Parixitgarh, Tehsil Mawana, District Meerut. It was the accepted position that he had not moved any application in the prescribed format, nor completed the requisite formalities under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005, for temporary or permanent disconnection, and had come straight to the High Court.

HOLDING-UNITS

INTERPLAY · UP-2005::disconnection

consumer-requested disconnection

HOLDING

Mandamus commanding the licensee to disconnect a consumer's supply is not available where the consumer has not applied in the prescribed format or completed the formalities under the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005, which prescribe a full procedure for temporary and permanent disconnection. The consumer may still apply; the respondents shall then decide immediately in accordance with law. ¶ 2-3

PRINCIPLE TAGS

relegate-to-statutory-remedy A consumer cannot obtain a writ of mandamus directing disconnection of his own supply without first applying in the prescribed format and completing the formalities under the Electricity Act, 2003 read with the U.P.. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE MEERUT CONNECTION SHOULD ACTUALLY BE DISCONNECTED

Left to a prescribed-format application under the Act and Code, to be decided in accordance with law. ¶ 3